

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
J. J. S., a MINOR BY HIS MOTHER AND NATURAL
GUARDIAN, STEPHANIE MORALES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
KENNETH W CAUFIELD, SHIELD #21338,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER HARMANJOT SINGH, SHIELD #
16466, INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER JUAN TRINIDAD, SHIELD # 19418,
INDIVIDUALLY AND AS A POLICE OFFICER

Defendants,

-----X
To the above named Defendant(s):

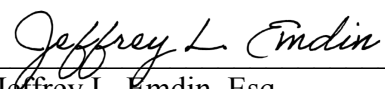
SUMMONS

INDEX NO.

Plaintiff designates Bronx
County as the place of trial
The basis of venue is Bronx
County is the place where the
cause of action arose.

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve
a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of
Appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this Summons,
exclusive of the day of service; or (30) days after the service is complete if the Summons is not
personally delivered to you within the State of New York. Note that if you fail to Appear or
Answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
June 4, 2020



Jeffrey L. Emdin, Esq.
Attorney for the Plaintiff
330 West 38th Street room 302
New York, New York 10018
(212) 265-1350

Defendants' addresses:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

PO Kenneth w Caufield, shield # 21338
c/o 45th pct.
2877 Barkley Avenue
Bronx, NY 10465

PO Harmanjot Singh Shield 16466
c/o 45th pct.
2877 Barkley Avenue
Bronx, NY 10465

PO Juan Trinidad, Shield #19418
c/o 45th pct.
2877 Barkley Avenue
Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
J. J. S., a MINOR BY HIS MOTHER AND NATURAL
GUARDIAN, STEPHANIE MORALES,

VERIFIED COMPLAINT

INDEX NO.

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
KENNETH W CAUFIELD, SHIELD #21338,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER HARMANJOT SINGH, SHIELD #
16466, INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER JUAN TRINIDAD, SHIELD # 19418,
INDIVIDUALLY AND AS A POLICE OFFICER

Defendants,

-----X

Plaintiff, J. J. S., a minor, by his mother and natural guardian, STEPHANIE SANTOS
and their attorney, JEFFREY L. EMDIN as and for a Verified Complaint alleges:

PARTIES

1. Upon information and belief and at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "CITY" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned the defendant, the City of New York, hereinafter referred to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the Police Officers therein.
3. Upon information and belief, Police Officer Kenneth W. Caufield, hereinafter referred to as 'Caufield' at all relevant times set forth herein was a New York City Police Officer

assigned to the 45th pct.. At all times hereinafter mentioned, including on the 6th day of February, 2020, Caufield was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as a Police Officer and employee of the City of New York, and/or New York City Police Department.

4. Upon information and belief, at all relevant times mentioned herein, Caufield was and is assigned shield # 21338.
5. Upon information and belief, Police Officer Harmanjot Singh, hereinafter referred to as ‘Singh’ at all relevant times set forth herein was a New York City Police Officer assigned to the 45th pct. as a Neighborhood Community Officer. At all times hereinafter mentioned, including on the 6th day of February, 2020, Singh was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as a Police Officer and employee of the City of New York, and/or New York City Police Department.
6. Upon information and belief, at all relevant times mentioned herein, Singh was and is assigned shield # 16466.
7. Upon information and belief, Police Officer Juan Trinidad, hereinafter referred to as ‘Trinidad’ at all relevant times set forth herein was a New York City Police Officer assigned to the 45th pct. as a Neighborhood Community Officer. At all times hereinafter mentioned, including on the 6th day of February, 2020, Trinidad was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as a Police Officer and employee of the City of New York, and/or New York City Police Department.

8. Upon information and belief, at all relevant times mentioned herein, Trinidad was and is assigned shield # 19418.
9. Collectively, Caufield, Singh and Trinidad, will hereinafter be referred to as the “officers”.
10. At all relevant times hereinafter mentioned, J. J. M., age 14, hereinafter referred to as “J. J. M.” or ‘plaintiff’, is and was a minor residing with his mother and natural guardian, Stephanie Santos, in Bronx County.
11. At all times hereinafter mentioned, Stephanie Santos, hereinafter referred to as “Santos”, was the mother and natural guardian of J. J. M.. Santos resides in Bronx County. Santos brings this action on behalf of J. J. M., a minor.
12. The plaintiff has timely filed a Notice of Claim pursuant to GML section 50, advising the defendants of the nature of her claims. The Defendant, City, has acknowledged receipt of the Notice of Claim and a 50 h hearing was held on June 3, 2020.
13. The defendants have not offered to settle the “plaintiff’s claims.
14. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

15. On February 6, 2020, at approximately 3:00 p.m., the plaintiff was lawfully in the vicinity of Westchester Square and East Tremont Avenue in Bronx County, New York, hereinafter referred to as the “location”.
16. At that time and place New York City Police Officers, including the “officers” were present.

17. A police officer approached J. J. M. and purposely shoved his body into him, knocking him backward. J. J. M. asked the officer why he did that and received no reply, only a smile.
18. J. J. M. objected to the officer's unnecessary action, including cursing at the officer. J. J. M. attempted to walk away however he was immediately surrounded by approximately three police officers, including, upon information and belief, Caufield, Singh, and Trinidad.
19. One of the officers, without warning or cause, forcefully grabbed J. J. M., pushed him up against a gate/fence, and pinned him to the fence.
20. The other two officers assisted in grabbing the plaintiff and manhandling him.
21. J. J. M. was had his head forced into the fence with great pressure applied. Nearby witnesses were yelling stop at the officers, but not one officer interceded to stop the violence from occurring or from continuing.
22. J. J. M. had not engaged in any criminal conduct, however the officers forcefully pushed the claimant's head down, while, at the same or approximate same time, stepped on his foot and jerked his arms back and up. The effect caused the plaintiff's body to violently be folded in half, causing him great pain and injury. J. J. M. felt like he was punched in his face and he felt a knee in his stomach.
23. The plaintiff was handcuffed, arrested, and transported to the 45th pct.
24. There was no warrant to arrest the plaintiff at the time he was arrested.
25. At the 45th pct. the defendants caused J. J. M. to be handcuffed to a bench for approximately 2 ½ hours.
26. No medical attention was provided to the plaintiff while he was in police custody.

27. One of the officers threatened the plaintiff, that he would be watching him for the next three years. The incident occurred near a school that the plaintiff attended. Other verbal threats were made towards the plaintiff causing him great fear and apprehension.
28. J. J. M.'s arresting and/or apprehending officer is Kenneth W. Caufield.
29. Caufield filed a Juvenile Report. In said report, Caufield falsely accused J. J. M. of committing the crime of resisting arrest.
30. The report falsely claimed that J. J. M. approached Caufield with "hands up and aggressive manner, (and) while a/o (Caufield) was effecting an arrest, defendant (J. J. M.) was flailing his arms and kicking officers."
31. J. J. M. was released from police custody at approximately 7:00 p.m. on February 6, 2020.
32. On his way home from the precinct, J. J. M. vomited several times and passed out.
33. An ambulance transported J. J. M. to Lincoln Medical Center.
34. J. J. M. presented with headaches, dizziness, weakness, facial injury, including abrasions over face, forehead, upper cheek, and upper eyelid with swelling, chest, neck and shoulder pain, knee pain, leg pain, with pain radiating down to his extremities. J. J. M. was diagnosed as having sustained a closed head trauma with concussion.
35. J. J. M. was admitted to Lincoln Hospital on February 6, 2020, and released on February 7, 2020.
36. No court date has been set for said criminal charge and upon information and belief no charges were formally filed or are pending.
37. Plaintiff is physically and emotionally traumatized by the incident.

38. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE ARREST, PLAINTIFF ALLEGES:**

39. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "38" with the same force and effect as if more fully and at length set forth herein.
40. That the defendants had no cause or reason to have arrested the plaintiff on February 6, 2020.
41. The plaintiff did not commit any crime prior to the point when he was stopped, seized, assaulted, battered, and arrested by the defendants.
42. The plaintiff's arrest was unlawful.
43. That by reason of the aforesaid false arrest the plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.
44. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE IMPRISONMENT, PLAINTIFF ALLEGES:**

45. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "44" with the same force and effect as if more fully and at length set forth herein.

46. That the defendants had no cause or reason to have arrested and imprisoned the plaintiff on February 6, 2020, at approximately 3:00 p.m.
47. That said false imprisonment continued through February 6, 2020 at approximately 6:00 – 7:00 p.m. when plaintiff was released to his father.
48. That at all times the plaintiff was conscious of the imprisonment, did not consent to the imprisonment, and said imprisonment was unlawful.
49. That by reason of the aforesaid false imprisonment the plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.
50. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST
ALL DEFENDANTS FOR ASSAULT AND BATTERY, PLAINTIFF ALLEGES:**

51. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "50" with the same force and effect as if more fully and at length set forth herein.
52. As set forth above the plaintiff was seized, grabbed, punched, struck, kicked/kneed, handcuffed, fingerprinted, threatened, searched and touched by the defendants in a manner that was not privileged, was offensive to the plaintiff, was without the plaintiff's permission or consent and not authorized by law.
53. That said acts and actions by the defendants constitute an assault and battery of the plaintiff's person, causing him physical and/or emotional harm.
54. That by reason of the aforesaid assault and battery, the plaintiff was subjected to great

indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.

55. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST
ALL DEFENDANTS FOR EXCESSIVE USE OF FORCE, PLAINTIFF ALLEGES:**

56. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "55" with the same force and effect as if more fully and at length set forth herein.
57. As set forth above the plaintiff was seized, grabbed, thrown against a fence, punched, kneed, had his face pressed into a fence, was bent in half, threatened, struck, handcuffed, for hours and touched by the defendants in a manner that was not privileged, was offensive to the plaintiff, was without the plaintiff's permission or consent and not authorized by law.
58. That said acts and actions by the defendants were excessive any beyond all reasonable means of force necessary that a reasonable officer would use under the same or similar circumstance.
59. That the defendants did not issue any warning prior to striking the plaintiff.
60. The defendants failed to utilize any de-escalation techniques prior to punching, assaulting and battering the plaintiff.
61. The plaintiff was not informed that he was under arrest prior to being grabbed, thrown into a fence, punched, kneed and viciously assaulted by the defendants.
62. The defendants kept plaintiff in handcuffs for over 2 ½ hours despite visible injury and need for medical attention.

63. The use of force utilized by the defendants was more than necessary to gain control of the plaintiff.
64. No officer present at the location intervened or stopped the use of excessive force.
65. That the defendants ignored the plaintiff's cry and that of civilian onlookers to stop what they were doing.
66. The plaintiff was visibly injured but the defendants did not immediately secure medical attention for him.
67. That the plaintiff engaged in no act or actions which would justify the aforementioned use of force by the defendants against the plaintiff.
68. That by reason of the aforesaid excessive use of force, the plaintiff was subjected to great indignity, humiliation, injury, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.
69. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
FOR FAILING TO INTERVENE, MITIGATE OR STOP

70. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "69" with the same force and affect as if more fully and at length set forth herein.
71. Upon information and belief, defendant "officers" were in the immediate vicinity of the "location" at the time when plaintiff assaulted, battered, subjected to excessive force and

falsely arrested, and took no action to stop, intervene, and mitigate such actions from occurring.

72. Upon information and belief, defendants were under a duty to act yet failed to do so when plaintiff was assaulted, battered, subjected to excessive force, and falsely arrested.
73. That the above acts committed by the defendants constituted a failure to intervene, proximately causing or contributing to the physical and emotional harm endured by the plaintiff.
74. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

75. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "74" with the same force and affect as if more fully and at length set forth herein.
76. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising, monitoring, observing, disciplining and promoting, as and for its employees, defendants "officers", in that said employee(s), individually or collectively, lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers.
77. That, upon information and belief, the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices. Upon information and belief the defendant "City" failed to investigate the above named Officer's backgrounds; the City failed to

properly train, supervise and monitor the “officers”, and the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

78. That each defendant “officer” while acting within the scope of his employment, was negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances.
79. That each of the officers was negligent, careless and reckless in the manner in which they investigated and/or performed his police duties on the date and at the location specified herein.
80. Upon information and belief the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; use of force, use of excessive force, failure to intervene and/or report misconduct, and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.
81. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, was caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees without any negligence on the part of the plaintiff contributing thereto.
82. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief will continue to suffer great physical and mental pain, and she was thereby damaged.
83. Upon information and belief, the plaintiff expended and incurred divers sums of money in an effort to cure himself of said injuries and to extricate himself from the indignities

and humiliation foisted upon him by the actions of the defendants, their agents, servants and/or employees. Upon information and belief, plaintiff will be required to expend further sums, and the plaintiff has been otherwise damaged.

84. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS FOR A SEVENTH THROUGH NINTH CAUSES OF ACTION AGAINST CAUFIELD, SINGH AND TRINIDAD, EACH AS AN OFFICER AND INDIVIDUALLY, FOR 42 U.S.C. 1983 VIOLATIONS, AND FOR VIOLATING THE 4TH AND 14TH AMENDMENTS THE PLAINTIFF ALLEGES:

85. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "84" with the same force and effect as if more fully and at length set forth herein.
86. As set forth within this Complaint, the defendants, Caufield, Singh and/or Trinidad, have violated the plaintiff's right to be free of: illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution, and 42 USC 1983. Further violations by the defendants also include arrest/detention without probable cause under the 4th and 14th Amendments and 42 USC 1983, malicious prosecution under the 4th and 14th Amendments and 42 USC 1983, the use of excessive force as protected under the 4th and 14th Amendments and 42 USC 1983, and discrimination based upon race, sex or sexual orientation.
87. The plaintiff is an adolescent Hispanic male who, upon information and belief, was subjected to false arrest and excessive force by the defendants based on his race.
88. The actions of Caufield were committed while acting under color of law. Caufields' acts include, but are not limited to: unlawfully stopping the plaintiff; seizing the plaintiff;

retaliating against the plaintiff for questioning the defendant, throwing the plaintiff against the fence; punching plaintiff; pinning plaintiff to the fence; kneeing plaintiff; violently jerking plaintiff's arm backwards; disregarding plaintiff's and others pleas to stop; threatening the plaintiff; punching the plaintiff; failing to intervene to stop the misconduct of his fellow officers: filing false reports; providing false statements; in fabricating evidence; falsely arresting and imprisoning plaintiff; malicious prosecution; engaging in a cover-up, and using excessive force. Said actions were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of Caufield's acts.

89. Caufield's conduct was designed to, and did cause plaintiff to be injured, imprisoned, and prosecuted and did cause plaintiff mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq. and under the Constitutions of the United States and/or State of New York.
90. The actions of Singh were committed while acting under color of law. Singh's acts include, but are not limited to: unlawfully stopping the plaintiff; seizing the plaintiff; retaliating against the plaintiff for questioning the defendant, throwing the plaintiff against the fence; punching plaintiff; pinning plaintiff to the fence; kneeing plaintiff; violently jerking plaintiff's arm backwards; disregarding plaintiff's and others pleas to stop; threatening the plaintiff; punching the plaintiff; failing to intervene to stop the misconduct of his fellow officers: filing false reports; providing false statements; in fabricating evidence; falsely arresting and imprisoning plaintiff; malicious prosecution; engaging in a cover-up, and using excessive force. Said actions were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of Singh's acts.

91. Singh's conduct was designed to, and did cause plaintiff to be injured, imprisoned, and prosecuted and did cause plaintiff mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq. and under the Constitutions of the United States and/or State of New York.
92. The actions of Trinidad were committed while acting under color of law. Trinidad's acts include, but are not limited to: unlawfully stopping the plaintiff; seizing the plaintiff; retaliating against the plaintiff for questioning the defendant, throwing the plaintiff against the fence; punching plaintiff; pinning plaintiff to the fence; kneeling plaintiff; violently jerking plaintiff's arm backwards; disregarding plaintiff's and others pleas to stop; threatening the plaintiff; punching the plaintiff; failing to intervene to stop the misconduct of his fellow officers: filing false reports; providing false statements; in fabricating evidence; falsely arresting and imprisoning plaintiff; malicious prosecution; engaging in a cover-up, and using excessive force. Said actions were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of Trinidad's acts.
93. Trinidad's conduct was designed to, and did cause plaintiff to be injured, imprisoned, and prosecuted and did cause plaintiff mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq. and under the Constitutions of the United States and/or State of New York.
94. That by reason of the aforesaid, plaintiff has been damaged and seeks compensatory and punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper against defendant Caufield, Singh and/or Trinidad.

AS AND FOR A TENTH CAUSE OF ACTION:
FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK, PLAINTIFF ALLEGES:

95. That plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "94" with the same force and effect as if more fully and at length set forth herein.
96. That on or about the 6th day of February, 2020 at or about approximately 3:00 p.m. at the "location" set forth above the "officers" were present thereat as part of their regular and official employment as a police officer for the defendant, "City".
97. Plaintiff was lawfully and properly thereat at said location, when the officers, each acting as an agent, servant and/or employee of the defendant "City", pushed plaintiff, seized the plaintiff, assaulted, battered, punched, kneed, threatened and arrested plaintiff absent just cause, provocation or reason.
98. That all acts committed by the "officers", individually and/or collectively, were committed within the scope of their employment and under color of law. Upon information and belief, each act was committed pursuant to the training, rules, policy of the New York City Police Department, and/or with the knowledge that the City and/or NYPD was or would be deliberately indifferent to such acts or actions by its employees, including said "officers".
99. That said acts, as set forth above, constitute an illegal seizure of the plaintiff, assault and battery and excessive use of force, and deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983.

100. Upon information and belief, the defendants City and/or NYPD's laws, rules, guidelines, policies, customs and/or procedures re: use of force by members of service, conflict with its' own de-escalation policy re; use of force and the patrol guidelines. Upon information and belief, this conflict and ambiguous language has lead to many instances where members of service, including the named officers herein, utilize the improper use of force.
101. Further upon information and belief, the City and/or NYPD tolerates the practice of its members of service wherein they fail to report the use of force and/or cover it up its use.
102. The plaintiff was visibly injured by the defendants, however Caufield's Juvenile Report claims no force was utilized to arrest plaintiff.
103. A letter dated February 6, 2018, issued by the City of New York Department of Investigation, titled "DOI Investigation finds non-compliance by the NYPD with new use of force requirements" details the defendants, City and NYPD's, non-compliance with mandated use of force reporting.
104. Said letter stated that the "City of NT Department of Investigation found that police officers are not properly documenting all reportable use of force incidents, including an under-reporting of force incidents in arrest reports"
105. As set forth above, the plaintiff's arrest report a/k/a Juvenile Report did not document the use of force.
106. The DOI found the reporting system to be of critical importance, and despite the NYPD's pledge to do better in tracking use of force, in providing training etc. they have fallen short and jeopardized the NYPD relationships with communities across New York City.

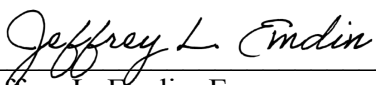
107. When force is used by a member of service, they are supposed to be required to fill out a Threat Resistance and Injury Report (TRI). That report is supposed to be reviewed by a supervisor, and if appropriate referred for further investigation.
108. This system is supposed to provide transparency, accountability and serve as a check and balance to the unbridled use of force by police members of service.
109. The DOI report also indicated, among other things, that “in at least 30% of arrest reports with a resisting arrest charge, officers stated on arrest reports that they did not use force, yet filed TRI reports which declaring that they had, in fact used force. This represents a critical breakdown in NYPD force reporting system because the Department relies on arrest reports data to calculate use of force statistics”.
110. The Report as detailed in the DOI letter made five (5) recommendations to the NYPD and City to address issues of compliance, accountability, training, discipline and public reporting.
111. These recommendations, include in part, completing TI reports by end of tour, providing a full account of events leading to the use of force, disciplining officers who fail to comply, a clear procedure requiring officers to select yes or no re: the use of force on arrest reports if any force was used, disciplining those officers who fail to select yes when required, as well as other pertinent recommendations found in said report.
112. Although these recommendations were made exactly two years prior to the incident, they went unheeded, and the defendants continued to allow use of force to go unchecked and undisciplined when officers present to not document and report use of force, leading to, upon information and belief, escalating use of force by NYPD officers, such has occurred herein.

113. In an article published in the Daily News on March 11, 2020, titled “Cops used more force in 2019 even as arrests fell last year: report”, it reports that ‘the use force cases by NYPD officers jumped in 2019 compared to the previous year-even as the number of city arrests dropped, new police department data shows”.
114. That data showed that of 214,617 arrests, force was reported being used 8,595 times, including 7,006 involving physical force, a jump of 7% from the prior year.
115. Upon information and belief, police body worn cameras captured the force used by the defendants against the plaintiff, but no action was taken against the defendant officers who used the force, or failed to stop or report its use.
116. Further, upon information and belief, the defendants City and/or NYPD, continue to employ officers who have been sued multiple times, including cases where payouts have been required due to the officers use of force or excessive use of force, among other acts of misconduct.
117. That the plaintiff did not commit any illegal act, either before or at the time he was stopped, seized, assaulted, battered, threatened, humiliated, demeaned, falsely arrested and imprisoned, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.
118. Upon information and belief the defendants fail to properly train their members of service, including the named defendant officers, in the law of disorderly conduct, including the public’s right to free speech.

119. Upon information and belief this has led to many instances of false arrest and/or use of force based on officers resorting to arrest and/or violence when they are cursed at by members of the public, as was the case with the plaintiff herein.
120. That by reason of the aforesaid, the plaintiff was deprived of his liberty, was injured physically and/or emotionally, imprisoned and falsely arrested and he was damaged.
121. That by reason of the aforesaid, the plaintiff has been damaged and seeks compensatory damages, punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the tenth causes of action, plus attorney's fees, costs, disbursements and punitive damages (on the seventh through tenth causes of action), and such further relief as to the court seems just and proper.

DATED: New York, New York
June 4, 2020



Jeffrey L. Emdin, Esq.
Attorney for the Plaintiff
330 West 38th Street suite 302
New York, New York 10018
(212) 265-1350

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

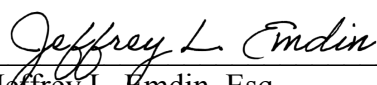
That I am an attorney associated with the Law Office of Jeffrey L. Emdin., the attorney of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
June 4, 2020



Jeffrey L. Emdin, Esq.